ABHITA LAND SOLUTIONS PVT LTD ®

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Regi. No 360320

Date : 24/03/2026

LEGAL SCRUTINY REPORT

To,
PROPXPARTNERS PRIVATE LIMITED
C-2098/2099, Oberoi Garden Estate,
Chandivali Farm Road, Chandivali.
Mumbai 400 072.

Ref : Title Report bearing Final Plot no. 6 as per the town planning scheme 2, admeasuring about 1584.5 sq. mtrs. situated at Village : Somvarpeth, Taluka : Haveli, District : Pune.

(hereinafter referred as **'the said Property'**)

PROPERTY OWNERS (S) : -

Jainabai Kom Ismail Aburkar – As per PR Card

Md. Usman Abdul Gani Arab & ors. - As per index 2 no. 21377/2024

DEVELOPER : -

Chaandrai Constructions SS LLP
Address- 34/5/12 to 6 Near Cosmos Bank,
Ambegaon Budruk, Pune 411046

Through its Designated Partners
Santosh Savalaram Sapkal
Vinayak Sopan Nimbalkar

Dear Sir,

With reference to the said Property and the documents and Agreements, title deeds forwarded to us pertaining to the subject property and the other information submitted by you, we have conducted a detailed search and investigation and submit Title Report/ Legal Scrutiny Report as under :

TITLE DEED SEEN BY US : -

- Property Card of Final Plot No. 6 (TPS-2)
- Mutation Entries Nos. 1, 2 & 3
- Development Agreement dated 02/08/2024 (Doc No. 21377/2024)
- Power of Attorney dated 02/08/2024 (Doc No. 21378/2024)
- Commencement Certificate dated 23/04/2025
- MahaRERA Registration Certificate dated 26/06/2025
- Approved Layout Plan dated 25/03/2025

DESCRIPTION OF IMMOVABLE PROPERTY : -

Title Report **bearing Final Plot no. 6 as per the town planning scheme 2, admeasureing about 1584.5 sq. mtrs. situated at Village : Somvarpeth, Taluka : Haveli, District : Pune.** within the registration **District Pune, Sub Registration Haveli, Pune City and** within the limits of **Pune Municipal Corporation.**

Boundary as per record as per Development Agreement :

On or towards East : by Road
On or towards South : by Road
On or towards West : by Final Plot no. 7
On or towards North : by Road

1. **Chain of the Title: -**

i. Location of Property, **Village : Somvarpeth, Taluka : Haveli, Dist : Pune.**

ii. Investigation, flow/tracing of Title and Search :

Flow : -

1. The Brief Chain of Title of the Owner in respect of the said Property is set out in Annexure hereto.

2. The below mentioned flow is tracked from the Development Agreement which was provided by the client.

3. **"The Said Property"** is originally owned by Smt. Jainabai Ismail Abubakar.

4. Smt. Jainabai Ismail Abubakar passed away on 11/05/1967 leaving behind her two sons namely- 1. Abdullah Ismail Abubakar, 2. Md. Ismail Abubakar and two daughters- 3. Bapmabai Usuf Suleman and 4. Aminabai Ibrahim Memon.

5. AND WHEREAS, during lifetime of Smt. Jainabai Ismail Abubakar, she made an oral gift whereby she had given **"the said property"** to her son- Abdullah Ismail Abubakar.

6. AND WHEREAS, after the death of Smt. Jainabai Ismail Abubakar, her other legal heirs, namely Md. Ismail Abubakar, Bapmabai Usuf Suleman, and Aminabai Ibrahim Memon, having admitted the aforesaid oral gift, released and relinquished their respective rights, title, and interest in favour of their brother, namely Abdullah Ismail Abubakar ; and accordingly, his name was recorded in the Record of Rights of the said property as the sole owner thereof.

7. AND WHEREAS, thereafter, by a Sale Deed dated 20/08/1971, Abdullah Ismail Abubakar (the seller) sold and conveyed **"the said property"** unto Mr. Abdul Gani Md. Shafi Arab (the purchaser) for consideration of Rs. 60,000/-vide **doc no. 2009 registered at SRO Haveli-02.**

8. AND WHEREAS, Mr. Abdul Gani Mohammad Shafi Arab passed away on 14/05/2008 leaving behind his following legal heirs namely- 1. Mr. Mohammed Shafi Abdul Gani Arab, 2. Shehnaaz Abdul Gani Arab, 3. Mr. Usman Abdul Gani Arab, 4. Mr. Rizwan Abdul Gani Arab, 5. Mr. Irfan Abdul Gani Arab, 6. Mr. Adnan Abdul Gani Arab, 7. Mrs. Sabiha Mahmood Patel, 8. Afiya Suhail Ahmed and 9. Smt. Asma Matin Shaikh. (As per **Mutation no. 792** which is mentioned in the PR Card)

9. AND WHEREAS, Mr. Irfan Abdul Gani Arab passed away on 13/07/2020 and after his death the names of his heirs namely 1. Rizwana Irfan Arab (Wife), 2. Mr. Mannan Irfan Arab (son) and 3. Khadijah Irfan Arab (daughter) are recorded in the record of right of **"the said property"** in place of Late Irfan Abdul Gani Arab. **(Recorded as per the Mutation no. 1 dated 17/12/2021)**

   (Note- Area recorded in the name of the abovementioned legal heirs is- 58. 69 sq. mtr. Each.)

10. AND WHEREAS, Smt. Afiya Suhail Ahmed passed away on 01/05/2021 and after her death the names of her heirs namely 1. Mr. Nabil Suhail Ahmed (son), 2. Mr. Adeel Suhail Ahmed (son) and 3. Zoya Suhail Ahmed (daughter) are recorded in **"the said property"** in place of Late Afiya Suhail Ahmed. (As per the **Mutation no. 1 dated 17/12/2021)**

    (Note- Area recorded in the name of the abovementioned legal heirs is 58. 69 sq. mtr. Each.)

11. AND WHEREAS, thereafter, by a Deed of Gift dated 22/07/2021 executed by 1. Shehnaaz Abdul Gani Arab, 2. Mr. Rizwan Abdul Gani Arab, 3. Mrs. Rizwana Irfan Arab, 4. Mr. Abdul Mannan Irfan Arab, 5. Ms. Khadijah Irfan Arab, 6. Mr. Adnan Abdul Gani Arab, 7. Mrs. Sabiha Mohmmed Patel, 8. Mr. Nabeel Suhail Ahmed, 9. Mr. Adeel Suhail Ahmed, 10. Miss. Zoya Suhail Ahmed, 11. Mrs. Asma Matin Shaikh and 12. Mr. Mohammed Shafi Abdul Gani Arab in favour of 1. Noor Baano Mohammed Ali Arab, 2. Farhan Mohammed Ali Arab for himself and as a poa holder of Saleha Rizwan Ahmed, 3. Mazhar Mohammed Ali Arab, 4. Sadia Mazhar Khan, 5. Saleha Rizwan Ahmed for an area admeasuring about **563.40 sq.mtrs.** out of **"the said property."**

The said Gift Deed is duly registered at the **Jt. SRO Haveli-06 vide doc no. 2200/2021. (As per the Mutation no. 3 dated 06/01/2022)**

12.

FURTHER, Mr. Usman Abdul Gani Arab filed a Special Civil Suit being 649/2022 in the court of Civil Judge Senior Division, Pune against 1. Smt. Shehnaaz Abdul Gani Arab, 2. Mr. Rizwan Abdul Gani Arab, 3. Mrs. Rizwana Irfan Arab, 4. Mr. Abdul Mannan Irfan Arab, 5. Ms. Khadijah Irfan Arab, 6. Mr. Adnan Abdul Gani Arab, 7. Mrs. Sabiha Mohmmed Patel, 8. Mr. Nabeel Suhail Ahmed, 9.Mr. Adeel Suhail Ahmed, 10. Miss. Zoya Suhail Ahmed, 11. Mrs. Asma Matin Shaikh and 12. Mr. Mohammed Shafi Abdul Gani Arab, 13. Mrs. Noor Baano Mohammed Ali Arab, 14. Mr. Farhan Mohammed Ali Arab, 15. Mr. Mazhar Mohammed Ali Arab, 16. Mrs. Saleha Rizwan Ahmed and 17. Mrs. Sadiya Mazhar Khan for partition, declaration and injunction.

13.

AND WHEREAS, the said suit concluded in compromise and the court by its Order dated 13/10/2022 disposed of the said suit as compromise as per the consent terms filed and admitted by the parties thereto.

(Note- as per the Order of the Court, the matter was referred for mediation. In view of report of mediator, the matter is settled. Both the parties have filed consent terms. The parties present have admitted the correctness of contents of consent terms. Hence, the suit is disposed of as compromised.) (Order copy attach herewith)

14.

WHEREAS, the property presently has nine tenants yielding very meagre rent, and the Owners wish to redevelop the property by constructing a new multi-storied building with modern residential and commercial amenities; and WHEREAS, considering the expertise, capital, manpower, and infrastructure required for such development, the Owners have decided to appoint a developer to undertake the redevelopment at the developer's own cost and expense, and the Developers have approached the Owners and agreed to carry out the redevelopment of the said property on their behalf.

15. FURTHER, Power of Attorney dated 02/08/2024 was executed between Md. Usman Abdul Gani Arab & 17 ors. as the **First Party** AND Chaandrai Constructions SS LLP through its designated partners – 1. Santosh Savalaram Sapkal, 2. Vinayak Sopan Nimbalkar as the **Second Party** vide **doc no. 21378/2024 at Jt. SRO Haveli-10** for **'the said property.'**

16. The **Development Agreement** executed between Md. Usman Abdul Gani Arab & 17 ors. (owners) as the **First Part** and Chaandrai Constructions SS LLP through its designated partners – 1. Santosh Savalaram Sapkal, 2. Vinayak Sopan Nimbalkar as the **"Developer of the Second Part"** for **"the Said Property"** registered in **Joint Sub Registrar of Haveli 10 on 02/08/2024, vide Document No. 21377/2024 for a Consideration of Rs. 13,26,91,000 /-.**

17. AND, according to Development Agreement, the 55% of the construction which will be allotted to the Owners while the 45% of the construction which shall be retained by the Developers.

18. **Commencement Certificate bearing no. CC/0287/25** dated 23/04/2025 was issued by Pune Municipal Corporation to R. Farhan Mohammed Ali Arab & others pertaining to **"the said property"** for residential and commercial purpose.

19. The Maharashtra Real Estate Regulatory Authority (MahaRERA) has issued a Registration Certificate on 26/06/2025 in favour ***Chaandrai Construction SS LLP*** of in respect of **"the said property"**, for the project known as ***"CHAANDRAI ICON"***, bearing Registration No. **PM1260002500139**.

Notes-

1. As mentioned in Property Card Mutation No. 870 and Mutation No. 781, the mortgage amount of Rs. 52,887 taken from the Bank of Maharashtra and the loan amount of Rs. 554.508 respectively were reconveyed by Md. Shafi Abdul Gani Arab. Accordingly, the said mortgage entries were reduced.)

2. As per the Property Card, the entry pertaining to Special Civil Suit No. 121 of 1968 is shown as disposed off.

3. An entry regarding a suit (लवाद निवाडा) dated 16/03/1949 is reflected in the SR Register, whereby an amount of Rs.150/- was

sdirected to be recovered in six instalments. However, as per the application copy provided by the client, it is observed that the loan in the name of Manikchand Punamchand was reduced.

SEARCH : -

1996-2002 NIL,
2003-2008 NIL,
2009-2012 NIL,
2013-2018 NIL,
2019-2023 NIL,

2024- ENTRY IN RECORDS,

The **Development Agreement** executed between Md. Usman Abdul Gani Arab & 17 ors. (owners) as the **First Part** and Chaandrai Constructions SS LLP through its designated partners – 1. Santosh Savalaram Sapkal, 2. Vinayak Sopan Nimbalkar as the **"Developer of the Second Part"** for **"the Said Property"** registered in **Joint Sub Registrar of Haveli 10 on 02/08/2024, vide Document No. 21377/2024 for a Consideration of Rs. 13,26,91,000 /-.**

2025- NIL,

Upto 12th March, 2026- ENTRY IN RECORDS,

Mortgage Deed dated 12/02/2026 was executed by Md. Usman Abdul Gani Aram and ors. Through their poa holder Chaandrai Construction SS LLP through its partners through its designated partners – 1. Santosh Savalaram Sapkal, 2. Vinayak Sopan Nimbalkar as **"the Mortgagor"** AND Aditya Birla Capital Limited through its authorised signatory as **"the Mortgagee"** for loan amount of Rs. 12,00,00,000/-, **registered at Jt. SRO Haveli-9 vide doc no. 4535/2026** on area admeasuring about 2576.95 sq. mtr.

(Note- the loan was taken on the following units-

Flats, shops & offices constructed on the carpet area admeasuring about 2576.95 sq. mtr. (Description as follows)

Shop no. 1, 2, 3, 4, 5 and 6 and Store no. 1 and 2 on ground floor,

Office no. 101, 102, 103, 104 and 112 on first floor,
Office no. 201, 202, 203, 204 and 212 on second floor,
Flat no. 301, 302, 303, 304 on third floor,
Flat no. 402, 403 on fourth floor,
Flat no. 502, 503, 504 on fifth floor,
Flat no. 602, 603, 604 on sixth floor,
Flat no. 702 & 704 on seventh floor,
Flat no. 801, 802, 803, 804 on eighth floor,
Flat no. 901, 902, 903, 904 on ninth floor,
Flat no. 1001, 1002, 1003, 1004 on tenth floor.

No other entries contrary to the above mentioned entries have been found in the Search conducted.

ABHITA LAND SOLUTIONS PVT. LTD., Title Investigator, vide its Title Scrutiny Report dated 24th March, 2026, has conducted a search of the said property for the period from 1996 to 2026 (30 years) as per the online records available on the IGR website at the Office of the Sub-Registrar of Assurances, Haveli, Pune. Documents prior to the year 1996 have been relied upon based on the copies produced before us.

We enclose herewith the Original Title Scrutiny Report dated 24th March, 2026 for your reference and records.

OTHER PROVISIONS: -

1. Whether the Property is affected by any revenue and tenancy regulations ? No.

2. Whether all copy of chain documents of the Property have been scrutinized ? Yes. (with remark)

3. Whether all previous owners had the right/competency to transfer the Property ? Yes. (with remark)

CERTIFICATE

I, Adv. Mansi Vinayak Joshi, certify that there exists a prior Mortgage/Charge/Encumbrance, whatsoever, as could be seen from the

Search Report for the period from 1996 to 2026 (30years) pertaining to the immovable property/ies covered by above said Title Scrutiny Report. (Refer remark)

I, Adv. Mansi Vinayak Joshi certify that **Owners- "Md. Usman Abdul Gani Arab & ors."** have a valid, clear, absolute, and marketable title over the said property and have transferred the development rights (vide doc no. 21377/2024) thereof to the **Developer – "Chaandrai Constructions SS LLP,"** authorizing the Developer to undertake its development, subject to the following remarks : -

Remarks :

1. **Obtain the copy of OC- Occupancy Certificate after completion of Construction.**
2. **Mortgage Deed for Rs. 12,00,00,000/-, executed in favour of Aditya Birla Capital Limited, registered at Jt. SRO Haveli-9 vide Doc. No. 4535/2026. The No objection Certificate- NOC of the Mortgagee must be obtained.**
3. **As per the Property Card, Non-Agricultural (NA) tax in respect of the said property is shown as pending. However, as per Maharashtra Government Gazette No. MAHBIL/2009/35530 dated 31st December 2025, permission for non-agricultural use is not required if such land is situated in the limits of the Muncipal Corporation.**

Thanking You,

MANSI VINAYAK JOSHI

Digitally signed by MANSI VINAYAK JOSHI
Date: 2026.03.24 11:04:33 +05'30'

Adv. Mansi Vinayak Joshi
(MAH/4074/2023)